

Docketing Notice

Case opened

On February 13, 2025, the clerk opens SYN-CA4-25-AG-4301, captioned A.R.M. v. Attorney General of the United States, from the petition tender received February 11 and completed by the February 12 order-copy submission. The notice records both dates so the docket does not replace the original receipt with the cure date. The Board's January 13, 2025 order in SYN-BIA-25-0113 is the agency action under review.

Docketing confirms administrative receipt and assignment only. It does not decide whether the petition ultimately satisfies every statutory or procedural requirement, whether A.R.M. is entitled to CAT protection, or what materials comprise the review record. Those matters remain available for party submissions and court rulings. The clerk will record each later motion, response, and order as a separate event rather than infer a disposition from case opening.

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Initial filing schedule

Counsel for the institutional respondent must enter an appearance by February 18, 2025. Petitioner's counsel must enter an appearance and file the court's docketing statement by February 27. The docketing statement should identify the basis for review, the issues expected to be presented, related matters if any, and whether oral argument is requested. Each filing must be served electronically on the opposing institutional party.

A party seeking correction or supplementation of the agency review record must proceed by motion and state the opposing party's position. Such a motion does not alter the record merely by being filed. The respondent may address multiple record motions in one response, and the parties may submit a stipulation concerning a true omission. Briefing dates will be fixed after the court resolves record composition and receives the agency certification.

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Record and briefing sequence

The agency must transmit an index and certification identifying the material on which the Board order was based. Court filings will use a separate appellate pagination so that a motion, order, or brief cannot be mistaken for evidence admitted in the agency proceeding. At this early stage the clerk does not certify a final agency-page total, decide whether any exhibit is missing, or classify any later proffer that has not yet been filed.

If the parties identify an omission from the agency materials, Rule 16(b) provides a procedure for correction. A request to add genuinely new evidence presents a different question and requires its own ruling. Once the court has resolved those questions and the agency has completed any directed correction, a briefing order will state the operative record and the sequence for principal and reply briefs.